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March 4, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 198

By: Brooks

An Act relating to real property; authorizing use of certain contingency for real estate contracts for municipalities, counties, and the state; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 43-116 of Title 11, unless there is created a duplication in numbering, reads as follows:

A municipality may enter into a real estate contract for the sale, conveyance, or exchange of real property, option to purchase real property, or a lease with an option to purchase real property that includes a contingency, not to exceed one hundred eighty (180) days, for the purposes of securing required permits, lot changes, zoning changes, and any other land use approvals necessary to use and operate the real property.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 865.70 of Title 19, unless there is created a duplication in numbering, reads as follows:

1 A county may enter into a real estate contract for the sale,
2 conveyance, or exchange of real property, option to purchase real
3 property, or a lease with an option to purchase real property that
4 includes a contingency, not to exceed one hundred eighty (180) days,
5 for the purposes of securing required permits, lot changes, zoning
6 changes, and any other land use approvals necessary to use and
7 operate the real property.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 110.6 of Title 74, unless there
10 is created a duplication in numbering, reads as follows:

11 The state may enter into a real estate contract for the sale,
12 conveyance, or exchange of real property, option to purchase real
13 property, or a lease with an option to purchase real property that
14 includes a contingency, not to exceed one hundred eighty (180) days,
15 for the purposes of securing required permits, lot changes, zoning
16 changes, and any other land use approvals necessary to use and
17 operate the real property.

18 SECTION 4. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
20 March 4, 2025 - DO PASS AS AMENDED BY CS
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